

FORM No. HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

C.R. No.5420 of 2026

Anwar-ud-Din Versus Muhammad Arshad

Sr. No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary
---------------------------------	------------------------------	--

25.02.2026 Rana Muhammad Shahid Mahmood, Advocate for petitioner.

By way of the instant civil revision, the petitioner has assailed the orders and decrees dated 12.06.2025 and 05.01.2026 passed by the learned Civil Judge 1st Class, Gujranwala and the learned Addl. District Judge, Gujranwala respectively, whereby the declaratory suit instituted by the petitioner was dismissed upon acceptance of an application under Section 11 CPC and the appeal preferred thereagainst was also dismissed.

2. Briefly stated, the petitioner instituted a suit for declaration and cancellation of registered sale deed No.6721 dated 04.07.2013, alleging that the same was fraudulent and void. During pendency of the suit, the respondents filed an application under Section 11 CPC on the ground that the validity of the said sale deed had already been adjudicated upon in previous litigation between the parties, wherein respondent No.1 was declared owner of the suit property by a competent court vide consolidated judgment and decree dated 06.05.2024. The learned trial court accepted the said application and dismissed the suit as barred by *res judicata*, which order was subsequently upheld by the learned appellate court. Both the said orders are impugned herein. Hence, this civil revision.

3. Learned counsel for the petitioner contends that both the learned courts below have non-suited the petitioner merely on the ground of maintainability by misapplying the principle of *res judicata*. Further argues that Section 11 CPC is not attracted to the facts of the present case and that the learned trial court erred in law while dismissing the suit without recording evidence as per already framed issues, thereby depriving the petitioner of an opportunity to prove his case on merits.

4. Heard. Record perused.

5. I am afraid that the contentions so advanced by the learned counsel for the petitioner are misconceived. The record reflects that in the previous round of litigation the same subject-matter, substantially between the same parties, had already been adjudicated upon by a competent court. It transpires from the record that following three separate suits pertaining to the same property and arising out of the same transaction were previously instituted:-

- “(i) A suit for declaration with permanent injunction titled “Mst. Ruqayya Bibi v. Anwaar-ud-Din etc.”, instituted by the wife of the present petitioner, asserting that Anwaar-ud-Din/petitioner had gifted the suit property in her favour.
- (ii) A suit for declaration with permanent injunction titled “Awais Anwaar v. Anwaar-ud-Din etc.”, filed by the son of the petitioner, asserting that his father, Anwaar-ud-Din, was merely a benamidar owner of the suit property; and
- (iii) A suit for declaration, possession, permanent injunction and recovery of mesne profits titled “Muhammad Arshad v. Mst. Ruqayya Bibi etc.”, instituted by Muhammad Arshad/respondent No.1, asserting that he had purchased the suit property through Registered Sale Deed No.6721 dated 04.07.2013 and had also obtained possession thereof.”

All the aforementioned three suits were consolidated by the learned trial court. Consolidated issues were framed, evidence was recorded and the matters were finally decided through a consolidated judgment and decree dated 06.05.2024 in favour of Muhammad Arshad/respondent No.1. It is pertinent to note that the petitioner was a party to all three of the aforementioned suits. The subject matter involved in those suits is identical to that of the present litigation (suit), being one and the same in all material respects. The rights, title and interest of the parties in respect of the disputed sale deed and the suit property were thus firmly determined.

6. The present litigation, in substance, constitutes an attempt to reopen and re-agitate a controversy that has already attained finality. In the previous proceedings, the learned trial court had declared Muhammad Arshad/respondent No.1 to be the lawful owner of the disputed property based on registered sale deed No.6721 dated 04.07.2013. The petitioner's challenge

in the present suit seeks to question the validity and sanctity of the same sale deed, which squarely falls within the mischief of Section 11 CPC. The prior consolidated proceedings involved identical parties and the same subject-matter; hence, permitting a fresh suit would amount to a collateral attack on a final judgment, which Section 11 CPC and the doctrine of *res judicata* expressly prohibit.

7. The doctrine underlying Section 11 CPC is founded on the maxim *interest reipublicae ut sit finis litium*, signifying that it is in the interest of the State that litigation should have an end. It also embodies the equitable principle expressed in the maxim *nemo debet bis vexari pro una et eadem causa*, which means that no person should be vexed twice over the same cause of action. Merely because the petitioner has attempted to present the relief in a different form does not alter the essential identity of the cause of action or the matter directly and substantially in issue. The principle ensures that disputes already adjudicated are not reopened, thereby safeguarding the stability of the parties' rights and obligations.

8. This rule is further reinforced by the maxim *res judicata pro veritate accipitur*, which mandates that a matter once judicially decided must be accepted as conclusively determined between the parties. Thus, the doctrine serves a dual purpose, it safeguards the parties from multiplicity of proceedings and at the same time, conserves valuable judicial time, a public resource, enabling the court to devote its attention to other deserving litigations awaiting adjudication.

9. The principle of *res judicata* is not merely a procedural rule, it is grounded in public policy and is often described as the "principle of peace," as it aims to bring finality to litigation and maintain stability in legal relationships. Finality is attached to conclude decisions and past and closed transactions cannot be reopened at the whim of a dissatisfied litigant.

10. While issues are ordinarily framed and adjudicated after recording evidence when factual disputes exist, where the

controversy concerns purely a question of law, the matter can be decided on legal points alone without requiring evidence. Being jurisdictional in nature, the bar of *res judicata* can validly be examined and decided at the threshold. In the present case, both the learned courts below have concurrently held that the matter is barred by *res judicata*, after due consideration of the previous consolidated judgment and the pleadings of the parties. Allowing the present suit to proceed would not only contravene settled law but would also operate inequitably, cause unnecessary harassment to the respondents and waste of judicial resources.

11. In conclusion, the petitioner seeks to reopen a controversy that has already attained finality between the parties through competent adjudication. The doctrine of *res judicata*, grounded in public policy and reflective of the principle of peace, exists to ensure certainty in law thereby preserving stability in the parties' legal interests. Permitting such re-litigation would undermine the very purpose of Section 11 CPC and disturb settled rights. The concurrent findings recorded by both the learned courts below do not suffer from any misreading or non-reading of record, perversity or jurisdictional defect warranting interference by this Court.

12. Consequently, finding no merit in the instant revision petition, the same is **dismissed in limine** with costs of Rs.20,000/-.

(MALIK WAQAR HAIDER AWAN)
JUDGE

Signed
26.02.2026
Sadheer Ahmad

APPROVED FOR REPORTING

JUDGE